

Court No. - 27

Case :- WRIT - C No. - 22694 of 2015

Petitioner :- Afzal

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- C.S.C., Nripendra Mishra

**Hon'ble Mrs. Sunita Agarwal, J.**

Shri Nipendra Mishra, learned counsel has put in appearance on behalf of the respondent no.1. Learned Standing Counsel appears for respondent no.1.

Issue notice to the respondent no. 4 returnable at an early date.

Steps be taken by both ways i.e. registered post A.D. as well as ordinary process.

All the respondents may file counter affidavit within four weeks.

Two weeks thereafter for filing rejoinder affidavit.

List after six weeks.

Order Date :- 22.4.2015

Atul kr. sri.

**Court No. - 28**

**Case :-** WRIT - C No. - 22694 of 2015

**Petitioner :-** Afzal

**Respondent :-** State Of U.P. & 3 Others

**Counsel for Petitioner :-** Satyam Narayan

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra

**Hon'ble Mahesh Chandra Tripathi,J.**

Shri Nripendra Mishra, learned counsel for the Corporation apprises to the Court that counter affidavit has been filed on 7.7.2015 but inspite of sufficient time no rejoinder affidavit has been filed.

As a last opportunity one week and no more time is accorded to learned counsel for the petitioner to file rejoinder affidavit. As per service report dated 21.11.2015 this much is reflected that service on the contesting respondent is sufficient and as such on the next date the Court would proceeded against the private respondent exparte.

List on 23.08.2017.

**Order Date :-** 8.8.2017

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**Court No. - 25**

**Case :-** WRIT - C No. - 22694 of 2015

**Petitioner :-** Afzal

**Respondent :-** State Of U.P. & 3 Others

**Counsel for Petitioner :-** Satyam Narayan

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra

**Hon'ble Siddhartha Varma,J.**

Rejoinder affidavit filed today is taken on record.

The controversy in the instant writ petition is as to whether the petitioner can be granted an electricity connection when the landlord has refused to give a no objection certificate.

Learned counsel for the petitioner relying on Clause 4.4 of the Electricity Supply Code, 2005 (hereinafter referred to as 'the Code'), submits that the electricity connection can be provided to him provided he submits an indemnity form as has been provided in the Code.

Learned counsel for the petitioner may look into the matter further.

Put this case on 12.1.2018 in the additional cause list.

**Order Date :-** 2.1.2018

praveen.

**Court No. - 25**

**Case :-** WRIT - C No. - 22694 of 2015

**Petitioner :-** Afzal

**Respondent :-** State Of U.P. & 3 Others

**Counsel for Petitioner :-** Satyam Narayan

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra

**Hon'ble Siddhartha Varma,J.**

Put up this case on 19.1.2018 in the additional cause list.

**Order Date :-** 12.1.2018

praveen.

**Case :-** WRIT - C No. - 22694 of 2015

**Petitioner :-** Afzal

**Respondent :-** State Of U.P. & 3 Others

**Counsel for Petitioner :-** Satyam Narayan

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra

**Hon'ble Siddhartha Varma,J.**

The petitioner who is a tenant of Shop No. 173, Chauki Chamaran Main Chauraha Daurala Road Kasba Sardhana, District Meerut applied for a fresh connection of electricity. However, when the electricity department refused the connection, he approached the Electricity Consumer Redressal Forum, Meerut, which on 28.08.2014 directed the electricity department to give the petitioner a fresh connection. When, the electricity department approached the Ombudsman at Lucknow then he refused the connection and set aside the order of the Electricity Consumer Redressal Forum dated 28.08.2014 and stated that the petitioner was free to get an order for the electricity connection from the Civil Judge (J.D.), Sardhana, District Meerut.

Aggrieved thereof the petitioner has approached this court and filed the present writ petition.

Learned counsel for the petitioner specifically relied upon in para 4.4. of the Electricity Supply Code, 2005 and submitted that if the petitioner is a tenant, and he submits an indemnity bond, then the electricity department has to supply the connection. He also relied upon a judgement dated 14.07.2011 passed in *writ petition No. 38285 of 2011, Devendra Sharma Vs. State of U.P. Thru Secy. And Others* and submitted that the Electricity department should not have any objection in giving an electricity connection to

the petitioner if he complies with the provisions of para 4.4(a)(i) of the 2005 Code.

Sri Nripendra Mishra, Advocate, who appears for the electricity department submits that the electricity department should not have any objection in giving a connection to the petitioner if he complies with the provisions of the Electricity Supply Code, 2005.

Under such circumstances, I direct that the electricity department, respondent No.3 to look into the provision of the para 4.4 of the Electricity Supply Code, 2005 and if it is feasible they should provide an electricity connection to the petitioner. The impugned order dated 03.12.2014 shall not come in the way of the parties.

List this case after one month.

**Order Date :-** 19.1.2018

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